

Development Consent

Section 4.38 of the *Environmental Planning and Assessment Act 1979*

As delegate of the Minister for Planning and Public Spaces under delegation executed on 9 March 2022, I approve the Development Application referred to in Schedule 1, subject to the conditions specified in Schedule 2.

These conditions are required to:

- prevent, minimise, or offset adverse environmental impacts;
- set standards and performance measures for acceptable environmental performance;
- require regular monitoring and reporting; and
- provide for the ongoing environmental management of the development



Joanna Bakopanos

A/Director

Industry Assessments

Sydney

23 July 2026

File: EF24/4596

SCHEDULE 1

Application Number:	SSD-69223466
Applicant:	Goodman Property Services (Aust) Pty Ltd
Consent Authority:	Minister for Planning and Public Spaces
Site:	Lot 1 DP 828392 132 McCredie Road, Guildford West
Development:	Construction and operation of a two-storey data centre with a total power consumption of 100 MW, comprising 9 data halls, electrical substation and switching station, emergency back-up generators, cooling plant, diesel and lithium-ion battery storage, associated infrastructure, landscaping and bulk earthworks

TABLE OF CONTENTS

DEFINITIONS	III
PART A ADMINISTRATIVE CONDITIONS	1
Obligation to Minimise Harm to the Environment.....	1
Terms of Consent	1
Limits of Consent.....	1
Notification of Commencement.....	2
Evidence of Consultation	2
Staging, Combining and Updating Strategies, Plans or Programs	2
Utilities, Services and Public Infrastructure.....	2
Demolition.....	3
Structural Adequacy	3
External Walls and Cladding.....	3
Compliance.....	3
Contributions to Council.....	3
Housing and Productivity Contribution.....	3
Operation of Plant and Equipment.....	4
Easements.....	4
Work as Executed Plans.....	4
Applicability of Guidelines	4
ADVISORY NOTES.....	4
PART B SPECIFIC ENVIRONMENTAL CONDITIONS	5
Noise and Vibration	5
Air Quality.....	7
Sustainability	8
Traffic and Access	9
Soils, Water Quality and Hydrology	10
Aboriginal Heritage	11
Biodiversity	12
Hazards and Risk	12
Waste Management.....	13
Visual Amenity.....	14
PART C ENVIRONMENTAL MANAGEMENT, REPORTING AND AUDITING.....	15
Environmental Management.....	15
Construction Environmental Management Plan.....	15
Operational Environmental Management Plan	15
Revision of Strategies, Plans and Programs	16
Reporting and Auditing	16
Access to Information	18
APPENDIX 1 DEVELOPMENT LAYOUT PLANS.....	19
APPENDIX 2 APPLICANT'S MANAGEMENT AND MITIGATION MEASURES.....	23
APPENDIX 3 INCIDENT NOTIFICATION AND REPORTING REQUIREMENTS.....	24

DEFINITIONS

Additional Information	Correspondence by the Applicant in response to the Department's request for information, including the document(s) titled Response to Submissions, prepared by Goodman Pty Ltd, dated 25 September 2025 and Request for Additional Information: Response to CPHR Group Advice, prepared by Goodman Pty Ltd, dated 24 October 2025
Applicant	Goodman Property Services (Aust) Pty Ltd, or any person carrying out any development to which this consent applies
BCA	Building Code of Australia
BC Act	<i>Biodiversity Conservation Act 2016</i>
Carrier	Operator of a telecommunication network and/or associated infrastructure, as defined in section 7 of the <i>Telecommunications Act 1997</i> (Cth)
Certifier	A council or an accredited certifier (including principal certifiers) authorised under section 6.5 of the EP&A Act to issue Part 6 certificates
CEMP	Construction Environmental Management Plan
Conditions of this consent	Conditions contained in Schedule 2 of this document
Construction	The carrying out of works for the purpose of the development, including bulk earthworks, and erection of buildings and other infrastructure permitted by this consent and the commissioning of all on-site plant and equipment
Council	Cumberland City Council
Day	The period from 7 am to 6 pm on Monday to Saturday, and 8 am to 6 pm on Sundays and Public Holidays
Department	NSW Department of Planning, Housing and Infrastructure (DPHI)
Development	The development described in Schedule 1, the EIS, Submissions Report and Additional Information, including the works and activities comprising the construction and operation of a data centre, as modified by the conditions of this consent
Development layout	The plans at Appendix 1 of this consent
Earthworks	Bulk earthworks, site levelling, import and compaction of fill material, excavation for installation of drainage and services, to prepare the site for construction
EIS	The Environmental Impact Statement titled Project Pluto Data Centre – 132 McCredie Road, Guidford West, prepared by Urbis Ltd dated 6 May 2025, submitted with the application for consent for the development
ENM	Excavated Natural Material
Environment	As defined in section 1.4 of the EP&A Act
EPA	NSW Environment Protection Authority
EP&A Act	<i>Environmental Planning and Assessment Act 1979</i>
EP&A Regulation	Environmental Planning and Assessment Regulation 2021
EPL	Environment Protection Licence under the POEO Act
Evening	The period from 6 pm to 10 pm
Fibre-ready facility	As defined in section 372W of the <i>Telecommunications Act 1997</i> (Cth)
GFA	Gross Floor Area
Heritage	Encompasses both Aboriginal and historic heritage including sites that predate European settlement, and a shared history since European settlement
Heritage item	An item as defined under the <i>Heritage Act 1977</i> , and assessed as being of local, State and/ or National heritage significance, and/or an Aboriginal Object or Aboriginal Place as defined under the <i>National Parks and Wildlife Act 1974</i> , the World Heritage List, or the National Heritage List or Commonwealth Heritage List under the <i>Environment Protection and Biodiversity Conservation Act 1999</i> (Cth), or anything identified as a heritage item under the conditions of this consent
HPC	Housing and Productivity Contribution

ICNG	<i>Interim Construction Noise Guideline</i> (DECC, 2009)
Incident	An occurrence or set of circumstances that causes or threatens to cause material harm to the environment, and as a consequence of that environmental harm, may cause harm to the health and safety of human beings, and which may or may not be or cause a non-compliance Note: “Material harm” is defined in this consent
Land	Has the same meaning as the definition of the term in section 1.4 of the EP&A Act
Load curtailment	Means the operation of back-up generators to reduce the development’s use of electricity from the National Electricity Market
Material harm	Is harm that: a) involves actual harm to the environment that may include (but not be limited to) a leak, spill, emission other escape or deposit of a substance, and as a consequence of that environmental harm (pollution), may cause harm to the health or safety of people; or b) results in actual loss or property damage of an amount, or amounts in aggregate, exceeding \$10,000 (such loss includes the reasonable costs and expenses that would be incurred in taking all reasonable and practicable measures to prevent, mitigate or make good harm to the environment) Note: This definition excludes “harm” that is either authorised under this consent or any other statutory approval Note: For the purposes of this definition, material harm excludes incidents captured by Work Health and Safety reporting requirements
Minister	NSW Minister for Planning and Public Spaces (or delegate)
Mitigation	Activities associated with reducing the impacts of the development prior to or during those impacts occurring
Night	The period from 10 pm to 7 am on Monday to Saturday, and 10 pm to 8 am on Sundays and Public Holidays
Non-compliance	An occurrence, set of circumstances or development that is a breach of this consent
OEMP	Operational Environmental Management Plan
Operation	The use of a data centre as described in the EIS, Submissions Report and Additional Information
Operation of back-up generators	Refers to all instances where a back-up generator’s internal combustion engine is in use
Planned power outage event	Any interruption to electricity supply to the site that is: a) scheduled, notified in advance, or reasonably foreseeable; b) undertaken for the purpose of maintenance, augmentation, testing or modification of electricity network infrastructure; or c) implemented as part of a managed system response, including controlled load shedding or demand management directed by the electricity market operator or a network service provider.
Principal Certifier	The certifier appointed as the principal certifier for the building work under section 6.6(1) of the EP&A Act
Planning Secretary	Secretary of the Department, or delegate
POEO Act	<i>Protection of the Environment Operations Act 1997</i>
Reasonable	Means applying judgement in arriving at a decision, taking into account: mitigation benefits, costs of mitigation versus benefits provided, community views, and the nature and extent of potential improvements
Registered Aboriginal Parties	Means the Aboriginal persons identified in accordance with the document entitled “ <i>Aboriginal cultural heritage consultation requirements for proponents 2010</i> ” (DECCW)
Rehabilitation	The restoration of land disturbed by the development to a good condition, to ensure it is safe, stable and non-polluting
Submissions Report (SR)	The Applicant’s response to issues raised in submissions received in relation to the application for consent for the development under the EP&A Act and includes the

document titled Project Pluto Data Centre – 132 McCredie Road, Guildford West, prepared by Urbis Ltd and dated 30 July 2025

Sensitive receivers

A location where people are likely to work, occupy or reside, including a dwelling, school, hospital, office or public recreational area

Site

The land defined in Schedule 1

TfNSW

Transport for New South Wales

Unplanned power outage event

An unplanned and unavoidable loss of electricity supply to the site arising from a failure of external electricity network infrastructure, including outages caused by infrastructure damage arising from events such as severe weather, bushfire, flooding or equipment failure within the external electricity network

VENM

Virgin Excavated Natural Material

Waste

Has the same meaning as the definition of the term in the Dictionary to the POEO Act

Year

A period of 12 consecutive months

SCHEDULE 2

PART A ADMINISTRATIVE CONDITIONS

OBLIGATION TO MINIMISE HARM TO THE ENVIRONMENT

- A1. In addition to meeting the specific performance measures and criteria in this consent, all reasonable and feasible measures must be implemented to prevent, and if prevention is not reasonable and feasible, minimise any material harm to the environment that may result from the construction and operation of the development, and any rehabilitation required under this consent.

TERMS OF CONSENT

- A2. The development may only be carried out:
- (a) in compliance with the conditions of this consent;
 - (b) in accordance with all written directions of the Planning Secretary;
 - (c) in accordance with the EIS and Submissions Report and Additional Information;
 - (d) in accordance with the Development Layout in Appendix 1; and
 - (e) in accordance with the management and mitigation measures in Appendix 2.
- A3. Consistent with the requirements in this consent, the Planning Secretary may make written directions to the Applicant in relation to:
- (a) the content of any strategy, study, system, plan, program, review, audit, notification, report or correspondence submitted under or otherwise made in relation to this consent, including those that are required to be, and have been, approved by the Planning Secretary; and
 - (b) the implementation of any actions or measures contained in any such document referred to in condition A3(a).
- A4. The conditions of this consent and directions of the Planning Secretary prevail to the extent of any inconsistency, ambiguity or conflict between them and a document listed in condition A2(c) or A2(e). In the event of an inconsistency, ambiguity or conflict between any of the documents listed in condition A2(c) or A2(e), the most recent document prevails to the extent of the inconsistency, ambiguity or conflict.

LIMITS OF CONSENT

Lapsing

- A5. This consent lapses five years after the date from which it operates, unless the development has physically commenced on the land to which the consent applies before that date.

Back-up Generator System

- A6. The Applicant must ensure:
- (a) total power consumption of the development does not exceed 100 megawatts; and
 - (b) the back-up generators installed and operated under this consent do not exceed a total installed generating capacity of 170 megawatts.
- A7. The Applicant must ensure:
- (a) operation of the back-up generators, excluding operation during unplanned power outage events, does not exceed 173 hours per year;
 - (b) no more than two (2) generators are tested at any one time at a maximum load of 100%;
 - (c) no more than two (2) generators are tested at any one time with no load; and
 - (d) the diesel fuel storage capacity of the site does not exceed 2,000 tonnes at any one time.

Note: For the purposes of condition A7, calculation of how many hours the back-up generators are tested, as a collective, should be based on the hours (in real time) that testing is in fact undertaken at the site per year. For example, five generators being tested concurrently over the course of an hour would count as one hour towards the threshold stipulated by condition A7 rather than five hours.

The calculation of hours is for the purposes of this condition and are not to be taken as a calculation of hours for the purposes of the Protection of the Environment Operations Acts 1997.

- A8. This development consent does not permit the operation of back-up generators:
- (a) for the purpose of generating electricity to be distributed by the National Electricity Market;
 - (b) to support load curtailment at the site; or
 - (c) during a planned power outage event.

NOTIFICATION OF COMMENCEMENT

- A9. The date of commencement of each of the following phases of the development must be notified to the Planning Secretary in writing, at least one month before that date, or as otherwise agreed with the Planning Secretary:
- (a) construction;
 - (b) operation;
 - (c) full operation of the development (described in the EIS as being when all data storage equipment and associated infrastructure is in place and operating); and
 - (d) cessation of operations.
- A10. If the construction or operation of the development is to be staged, the Planning Secretary must be notified in writing, at least one month before the commencement of each stage (or other timeframe agreed with the Planning Secretary).

EVIDENCE OF CONSULTATION

- A11. Where conditions of this consent require consultation with an identified party, the Applicant must:
- (a) consult with the relevant party prior to submitting the subject document to the Planning Secretary for approval; and
 - (b) provide details of the consultation undertaken including:
 - (i) the outcome of that consultation, matters resolved and unresolved; and
 - (ii) details of any disagreement remaining between the party consulted and the Applicant and how the Applicant has addressed the matters not resolved.

STAGING, COMBINING AND UPDATING STRATEGIES, PLANS OR PROGRAMS

- A12. With the approval of the Planning Secretary, the Applicant may:
- (a) prepare and submit any strategy, plan or program required by this consent on a staged basis (if a clear description is provided as to the specific stage and scope of the development to which the strategy, plan or program applies, the relationship of the stage to any future stages and the trigger for updating the strategy, plan or program);
 - (b) combine any strategy, plan or program required by this consent (if a clear relationship is demonstrated between the strategies, plans or programs that are proposed to be combined); and
 - (c) update any strategy, plan or program required by this consent (to ensure the strategies, plans and programs required under this consent are updated on a regular basis and incorporate additional measures or amendments to improve the environmental performance of the development).
- A13. If the Planning Secretary agrees, a strategy, plan or program may be staged or updated without consultation being undertaken with all parties required to be consulted in the relevant condition in this consent.
- A14. If approved by the Planning Secretary, updated strategies, plans or programs supersede the previous versions of them and must be implemented in accordance with the condition that requires the strategy, plan or program.

UTILITIES, SERVICES AND PUBLIC INFRASTRUCTURE

General Requirements

- A15. Prior to the commencement of construction of the development, the Applicant must:
- (a) consult with the relevant owner and provider of services or public infrastructure that are likely to be affected by the development or that need to be installed to support the development, to make satisfactory arrangements for relevant approvals, access to, diversion, protection and support of the affected services or infrastructure;
 - (b) prepare a dilapidation report identifying the condition of all public infrastructure in the vicinity of the site (including roads, gutters and footpaths); and
 - (c) submit a copy of the dilapidation report to the Planning Secretary and Council.
- A16. Unless the Applicant and the applicable authority agree otherwise, the Applicant must:
- (a) repair, or pay the full costs associated with repairing, any public infrastructure that is damaged by carrying out the development;
 - (b) relocate, or pay the full costs associated with relocating, any public infrastructure that needs to be relocated as a result of the development; and
 - (c) obtain any relevant approval(s) from the relevant service provider(s), prior to undertaking construction of the corresponding utility works.

Sydney Water

- A17. Prior to the commencement of operation of the development, the Applicant must obtain a Compliance Certificate for water and sewerage infrastructure servicing of the site under section 73 of the *Sydney Water Act 1994*.

Fibre-Ready Facilities

- A18. Prior to the issue of a Construction Certificate for any stage of the development, the Applicant (whether or not a constitutional corporation) is to provide evidence, satisfactory to the Certifier, that arrangements have been made for:
- (a) the installation of fibre-ready facilities to all individual lots and/or premises in the development to enable fibre to be readily connected to any premises that is being or may be constructed on those lots; and
 - (b) the provision of fixed-line telecommunications infrastructure in the fibre-ready facilities to all individual lots and/or premises in the development demonstrated through an agreement with a carrier.
- A19. Prior to the issue of an Occupation Certificate for the development the Applicant must demonstrate that the carrier has confirmed in writing it is satisfied that the fibre-ready facilities are fit-for-purpose.

DEMOLITION

- A20. All demolition must be carried out in accordance with *Australian Standard AS 2601-2001 The Demolition of Structures* (Standards Australia, 2001).

STRUCTURAL ADEQUACY

- A21. All new buildings and structures, and any alterations or additions to existing buildings and structures, that are part of the development, must be constructed in accordance with the relevant requirements of the BCA;

Note:

- Under Part 6 of the EP&A Act, the Applicant is required to obtain construction and occupation certificates for the proposed building works.
- The EP&A (Development Certification and Fire Safety) Regulation 2021 sets out the requirements for the certification of the development.

EXTERNAL WALLS AND CLADDING

- A22. The external walls of all buildings including additions to existing buildings must comply with the relevant requirements of the BCA.
- A23. Prior to the issue of:
- (a) any Construction Certificate relating to the construction of external walls (including the installation of finishes and claddings such as synthetic or aluminium composite panels); and
 - (b) an Occupation Certificate,
- the Applicant must provide the Certifier with documented evidence that the products and systems proposed for use or used in the construction of external walls (including finishes and claddings such as synthetic or aluminium composite panels) comply with the requirements of the BCA.
- A24. The Applicant must provide a copy of the documentation given to the Certifier to the Planning Secretary within seven days after the Certifier accepts it.

COMPLIANCE

- A25. The Applicant must ensure that all of its employees, contractors (and their sub-contractors) are made aware of, and are instructed to comply with, the conditions of this consent relevant to activities they carry out in respect of the development.

CONTRIBUTIONS TO COUNCIL

- A26. Prior to the issue of a Construction Certificate for any part of the development, or timing otherwise agreed upon with Council, a payment of a levy of \$4,506,237.24 (adjusted on a quarterly basis in accordance with the *Cumberland Local Infrastructure Contributions Plan 2020* (from the date of this consent), to account for movements in the Australian Bureau of Statistics Consumer Price Index – Building Construction (NSW)), must be paid to Council under section 7.12 of the EP&A Act and in accordance with the *Cumberland Local Infrastructure Contributions Plan 2020*.

HOUSING AND PRODUCTIVITY CONTRIBUTION

- A27. Prior to the issue of a Construction Certificate for any part of the development, a housing and productivity contribution (HPC) in accordance with Table 1 must be paid for the development, as adjusted in accordance with condition A28.

Table 1 Housing and Productivity Contribution Amount

Housing and productivity contribution	Amount
Housing and productivity contribution (base component)	\$478,501.83

Transport project component	N/A
Total housing and productivity contribution	\$478,501.83

- A28. At the time of payment, the amount of the HPC is to be adjusted in accordance with the Environmental Planning and Assessment (Housing and Productivity Contributions) Order 2024 (HPC Order).

The HPC may be made wholly or partly as a non-monetary contribution (apart from any transport project component) if the Minister administering the EP&A Act agrees.

The HPC is not required to be made to the extent that a planning agreement excludes the application of Subdivision 4 of Division 7.1 of the EP&A Act to the development, or the HPC Order exempts the development from the contribution.

The amount of the contribution may be reduced under the HPC Order, including if payment is made before 1 July 2025.

OPERATION OF PLANT AND EQUIPMENT

- A29. All plant and equipment used on site, or to monitor the performance of the development, must be:
- (a) maintained in a proper and efficient condition; and
 - (b) operated in a proper and efficient manner.

EASEMENTS

- A30. Prior to the issue of an Occupation Certificate, an easement under section 88A and/or restriction or public positive covenant under section 88E of the *Conveyancing Act 1919* naming Council as the prescribed authority, which can only be revoked, varied or modified with the consent of the Council, and which provides for stormwater management systems (including on-site detention) must be registered on title of Lot 1 DP 828392.

WORK AS EXECUTED PLANS

- A31. Prior to the issue of an Occupation Certificate for the development, work-as-executed drawings signed by a registered surveyor demonstrating that the stormwater drainage and finished ground levels have been constructed as approved, must be submitted to the Principal Certifier.

APPLICABILITY OF GUIDELINES

- A32. References in the conditions of this consent to any guideline, protocol, Australian Standard or policy are to such guidelines, protocols, Standards or policies in the form they are in as at the date of this consent.
- A33. However, consistent with the conditions of this consent and without altering any limits or criteria in this consent, the Planning Secretary may, when issuing directions under this consent in respect of ongoing monitoring and management obligations, require compliance with an updated or revised version of such a guideline, protocol, Standard or policy, or a replacement of them.

ADVISORY NOTES

- AN1.** All licences, permits, approvals and consents as required by law must be obtained and maintained as required for the development. No condition of this consent removes any obligation to obtain, renew or comply with such licences, permits, approvals and consents.

PART B SPECIFIC ENVIRONMENTAL CONDITIONS

NOISE AND VIBRATION

Hours of Work

- B1. The Applicant must comply with the hours detailed in Table 2 below.

Table 2 Hours of Work

Activity		Day	Time
Construction		Monday – Friday	7 am to 6 pm
		Saturday	8 am to 1 pm
Operation	Operation of back-up generators (excluding unplanned power outage events)	Monday – Saturday Sunday	7 am to 6 pm 8 am to 6 pm
	All other activities	Monday – Sunday	24 hours

- B2. Construction works outside of the hours identified in condition B1 may be undertaken in the following circumstances:
- (a) works that are inaudible at the nearest sensitive receivers;
 - (b) works agreed to in writing by the Planning Secretary;
 - (c) for the delivery of materials required outside these hours by the NSW Police Force or other authorities for safety reasons; or
 - (d) where it is required in an emergency to avoid the loss of lives, property or to prevent environmental harm.

Construction Noise Limits

- B3. The development must be constructed to achieve, as far as feasible and reasonable, the construction noise management levels detailed in the ICNG. All feasible and reasonable noise mitigation measures must be implemented and any activities that could exceed the construction noise management levels must be identified and managed in accordance with the management and mitigation measures in Appendix 2 of this consent and the development's CNMP (see condition B5).

Vibration Criteria

- B4. Vibration caused by construction at any structure outside the site must be limited to:
- (a) for structural damage, the latest version of *DIN 4150-3 (2016-12) Vibration in Buildings – Part 3: Effects on Structures* (German Institute for Standardisation, 2016) and *BS 7385-2 Evaluation and measurement for vibration in buildings Guide to damage levels from groundborne vibration* (British Standards Institution, 1993); and
 - (b) for human exposure, the acceptable vibration values set out in the *Environmental Noise Management Assessing Vibration: a technical guideline* (DEC, 2006) (as may be updated or replaced from time to time).

Construction Noise Management Plan

- B5. The Applicant must prepare a Construction Noise Management Plan (CNMP) for the development to the satisfaction of the Planning Secretary. The CNMP must form part of a CEMP in accordance with condition C2 and must:
- (a) be prepared by a suitably qualified and experienced noise expert;
 - (b) describe the procedures to achieve the noise management levels specified in condition B3;
 - (c) describe the measures to be implemented to manage high noise generating works (such as piling);
 - (d) describe the community consultation undertaken in relation to construction noise management and outline any strategies developed with the community to manage high noise generating works or to provide respite periods; and
 - (e) include a complaints management system that would be implemented for the duration of the development.
- B6. The Applicant must:
- (a) not commence construction until the CNMP required by condition B5 is approved by the Planning Secretary; and
 - (b) implement the most recent version of the CNMP approved by the Planning Secretary for the duration of construction.

Operational Noise Limits

- B7. The Applicant must ensure that noise generated by the operation of the development does not exceed the noise limits outlined in Table 3 below during the meteorological conditions identified in Table 4, except where altered by condition B8 of this consent. Noise generated by the development is to be measured in accordance with the relevant monitoring performance procedures (section 7) and exemptions (including certain meteorological conditions) of the NPfI.

Table 3 Noise Limits (dB(A))

Location	Operation of back-up generators (incl. testing)	At all other times		
		Day L _{Aeq} (15 minute)	Evening L _{Aeq} (15 minute)	Night L _{Aeq} (15 minute)
NCA1 (Residential)	46	40	38	38
NCA2 (Residential)	49	37	37	37
NCA03 (Active recreation)	48	46		
NCA04 (Industrial receivers)	67	57		

Note: Noise generated by the development is to be measured in accordance with the relevant monitoring performance procedures and exemptions (including certain meteorological conditions) of the NPfI.

Table 4 Applicable Meteorological Conditions

Assessment Period	Meteorological Conditions
Day	Stability Categories A, B, C and D with wind speeds up to and including 3m/s at 10m above ground level.
Evening	Stability Categories A, B, C and D with wind speeds up to and including 3m/s at 10m above ground level.
Night	Stability Categories A, B, C and D with wind speeds up to and including 3m/s at 10m above ground level; or Stability category E and F with wind speeds up to and including 2m/s at 10m above ground level.

- B8. The development's noise limits (see condition B7) are altered in the following instances:
- during unplanned power outage events, the noise limits outlined in Table 3 do not apply; and
 - should the site be subject to meteorological conditions which are not identified in Table 3, then the applicable noise limits for the development are those outlined in Table 3 plus 5dB.
- B9. The Applicant must ensure that noise generated during operation of the development does not exhibit annoying noise characteristics, as defined in Fact Sheet A of the NPfI.

Operational Noise Verification Report

- B10. Within three months of the commencement of full operation of the development (described in the EIS as being when all data storage equipment and associated infrastructure is in place and operating), or as otherwise directed by the Planning Secretary, the Applicant must prepare and submit a noise verification report for the development. The noise verification report must:
- be prepared to the satisfaction of the Planning Secretary by a suitably qualified and experienced acoustic consultant;
 - demonstrate that noise verification has been carried out in accordance with:
 - AS 1055:2018 Acoustics – Description and measurement of environmental noise (Standards Australia, 2018); and
 - Approved Methods for the Measurement and Analysis of Environmental Noise in NSW (EPA, 2022);

- (iii) the monitoring and reporting requirements detailed in Section 7 of the NPfl; and
- (c) include:
 - (i) noise measurements taken during general operation and during back-up generator testing, with the timing and duration of all generator operation verified against the generator operations log required under condition C18(b)(ii);
 - (ii) a record of the development's operating conditions during monitoring, including the number and load of cooling units, fans, and other major noise-emitting plant in operation;
 - (iii) an analysis of:
 - i. the prevailing meteorological conditions;
 - ii. applicable corrections for annoying noise characteristics (as per Fact Sheet C of the NPfl); and
 - iii. the development's compliance with noise limits specified in conditions B7 and B9; and
 - (iv) a description of additional at-source and transmission pathway mitigation measures implemented, and/or a description of contingency measures to be implemented (including a timetable for the implementation of any required actions), to address any exceedance of the noise limits specified in conditions B7 and B9.

AIR QUALITY

Dust Minimisation

- B11. The Applicant must take all reasonable steps to minimise dust generated during all works authorised by this consent.
- B12. During construction, the Applicant must ensure that:
- (a) exposed surfaces and stockpiles are suppressed by regular watering or other alternative suppression method;
 - (b) all trucks entering or leaving the site with loads have their loads covered;
 - (c) trucks associated with the development do not track dirt onto the public road network; and
 - (d) land stabilisation works are carried out progressively on site to minimise exposed surfaces.

Air Quality Discharges

- B13. The Applicant must install and operate equipment in line with best practice to ensure that the development complies with all load limits, air quality criteria/air emission limits and air quality monitoring requirements as specified in the Protection of the Environment Operations (Clean Air) Regulation 2022.

Annual Emissions Testing

- B14. Within twelve (12) months of the commencement of operation, and every twelve (12) months thereafter, unless the Planning Secretary directs otherwise, the Applicant must undertake an annual emissions test on at least one (1) back-up generator for the pollutants and parameters identified in Table 5 below. The back-up generator must be selected on a rotational basis.

Table 5 Annual Emissions Testing Requirements

Pollutant / Parameter	Units of measure	Frequency	Sampling Method ¹
Nitrogen dioxide or nitric oxide (as NO ₂ equivalent)	Milligrams per cubic metre	Annual	TM-11
Temperature	Degrees Celsius (°C)	Annual	TM-2
Velocity	Metres per second	Annual	TM-2
Oxygen	Percent (%)	Annual	TM-25
Flowrate	Cubic metres per second	Annual	TM-2

Note:

- ¹ The sampling methods are those contained in the Approved Methods for the Sampling and analysis of Air Pollutants in NSW (EPA, 2022).

Back-up Generator System

- B15. The Applicant must ensure the design, installation and operation of the back-up generators and/or the associated enclosures do not preclude the ability for additional air pollution emission controls to be retrofitted.

Air Quality Management Plan

- B16. Prior to the commencement of operation of the development, the Applicant must prepare an Air Quality Management Plan (AQMP) to the satisfaction of the Planning Secretary. The AQMP must form part of the OEMP required by condition C5 and must:

- (a) be prepared by a suitably qualified and experienced person(s);
- (b) detail and rank all emissions from all sources of the development, including particulate emissions;
- (c) describe a program that is capable of evaluating the performance of the operation against the criteria in the *Approved Methods for Modelling and Assessment of Air Pollutants in NSW* (EPA, 2022), including during a power outage event, and determining compliance with key performance indicators;
- (d) identify any control and management measures that will be implemented for each emission source, including:
 - (i) provision of any back-up generator testing respite period/s;
 - (ii) procedures to avoid or minimise back-up generator testing during periods of adverse ambient air quality;
- (e) outline the monitoring procedure/s which would be implemented during each power outage event; and
- (f) include a Power Outage Notification Protocol for the development that must:
 - (i) identify the neighbouring properties which would be notified should a power outage event last 30 minutes or more;
 - (ii) identify the trigger point(s) for notifying neighbouring properties that the back-up generator system is operating; and
 - (iii) detail how these properties would be made aware that the development's back-up generator system is required to operate for the duration of the power outage event.

B17. The Applicant must:

- (a) not commence operation until the AQMP required by condition B16 is approved by the Planning Secretary; and
- (b) implement the most recent version of the AQMP approved by the Planning Secretary for the duration of the development.

Odour Management

B18. The Applicant must ensure the development does not cause or permit the emission of any offensive odour (as defined in the POEO Act).

SUSTAINABILITY

B19. Prior to the commencement of operation of the development, the Applicant must demonstrate, to the satisfaction of the Planning Secretary, that it has, in accordance with applicable government policy:

- (a) offset all greenhouse gas generation associated with the supply of electricity to the development (including both non-IT and IT loads) by demonstrating that all operational electricity demand is matched with a portfolio of additional, firming renewable energy supply at all times;
- (b) entered into a Power Purchase Agreement(s) and firming agreement for NSW-based supply within the National Electricity Market to meet the requirements of (a); and
- (c) put in place a framework and management principles for accommodating any shortfalls in the availability of renewable energy that may occur from time to time, including through demand flexibility and firming.

B20. Within six months of the commencement of construction of the development, the Applicant must provide written evidence, to the satisfaction of the Planning Secretary that:

- (a) it has commenced the process for entering into the Power Purchase Agreement(s) and firming agreement required by condition B19; and
- (b) every six months thereafter, or as otherwise agreed with the Planning Secretary, provided a written update of the status of these agreements.

B21. Prior to the commencement of operation, the Applicant must prepare and implement a Sustainability Management Plan for the life of the development, to the satisfaction of the Planning Secretary. The Plan must form part of the OEMP required by condition C5 and must:

- (a) include a metering and data acquisition framework to enable direct and continuous measurement and regular reporting of:
 - (i) electricity consumed by information technology equipment used for data processing, storage and transmission, regardless of form factor, technology or configuration;
 - (ii) total electricity consumption associated with the operation of the development;
 - (iii) total water consumption associated with the operation of the development;
- (b) include a program for annual reporting of:
 - (i) Power Usage Effectiveness (PUE), calculated as the ratio of total electricity consumption to electricity consumed by information technology equipment;

- (ii) Water Usage Effectiveness (WUE), calculated as total water consumption relative to electricity consumed by information technology equipment;
 - (iii) greenhouse gas emissions (CO₂-e);
- (c) identify measures to manage and reduce resource consumption and emissions over time, including:
 - (i) efficiency measures and strategies to minimise and continually improve operational PUE and WUE;
 - (ii) measures to reduce emissions associated with all onsite electricity consumption, including possible on-site or proximate generation and/ or storage measures, and/ or demand flexibility;
 - (iii) the framework and management principles in B19(c);
 - (iv) details of alignment with the greenhouse gas mitigation hierarchy, as referenced in the *NSW Guide for Large Emitters* (EPA, 2025);
 - (v) measures to avoid, minimise and reduce potable water consumption, including prioritising the use of recycled or non-potable water for non-potable functions (including cooling), where available;
- (d) detail:
 - (i) a framework for the prioritisation and timely implementation of the measures identified in (c) above, including indicative timeframes, triggers or staging;
 - (ii) procedures for monitoring and analysing performance trends and identifying and mitigating material deviations from target operational efficiencies;
- (e) include a program for regular review of:
 - (i) operational performance, informed by monitoring data, to assess the effectiveness of implemented mitigation measures under this plan;
 - (ii) the development's compliance with condition B19; and
- (f) review and, if necessary, revise the mitigation measures included in this plan every three years, including but not limited to:
 - (i) consideration of this in the context of the latest applicable government policy;
 - (ii) updates to water and energy efficiency and emissions reduction measures;
 - (iii) review of back-up power infrastructure and operational strategies to identify feasible and reasonable alternative lower-emissions or zero-emissions technologies; and
 - (iv) review of available water servicing arrangements, in consultation with the relevant water service provider, to identify any alternative non-potable or recycled water supply options, and where applicable, revision of potable water demand reduction measures to reflect changes in servicing arrangements.

B22. The Applicant must:

- (a) not commence operation until the development's Sustainability Management Plan required by condition B21 is approved by the Planning Secretary; and
- (b) implement the most recent version of the Sustainability Management Plan approved by the Planning Secretary for the duration of the development.

TRAFFIC AND ACCESS

Construction Traffic Management Plan

B23. Prior to the commencement of construction of the development, the Applicant must prepare a Construction Traffic Management Plan for the development to the satisfaction of the Planning Secretary. The plan must form part of the CEMP required by condition C2 and must:

- (a) be prepared by a suitably qualified and experienced person(s);
- (b) be prepared in consultation with Council;
- (c) detail the measures that are to be implemented to ensure road safety and network efficiency during construction;
- (d) detail heavy vehicle routes, access and parking arrangements;
- (e) provide details of any oversized vehicles required for construction;
- (f) provide details of traffic control measures (such as an escort or other suitable traffic control measure) to manage the movement of oversized vehicles along public roads;
- (g) include a Driver Code of Conduct to:
 - (i) minimise the impacts of earthworks and construction on the local and regional road network;
 - (ii) minimise conflicts with other road users;
 - (iii) minimise road traffic noise; and
 - (iv) ensure truck drivers use specified routes;

- (h) include a program to monitor the effectiveness of these measures; and
- (i) if necessary, detail procedures for notifying residents and the community (including local schools), of any potential disruptions to routes.

B24. The Applicant must:

- (a) not commence construction until the Construction Traffic Management Plan required by condition B23 is approved by the Planning Secretary; and
- (b) implement the most recent version of the Construction Traffic Management Plan approved by the Planning Secretary for the duration of construction.

Roadworks and Access

B25. The Applicant must submit design plans to the satisfaction of the relevant roads authority which demonstrate that the proposed accesses to the development are designed to accommodate the turning path of a 19 m articulated vehicle.

Parking

B26. The Applicant must provide sufficient parking facilities on-site, including for heavy vehicles and for site personnel, to ensure that traffic associated with the development does not utilise public and residential streets or public parking facilities.

Operating Conditions

B27. The Applicant must ensure:

- (a) internal roads, driveways and parking (including grades, turn paths, sight distance requirements, aisle widths, aisle lengths and parking bay dimensions) associated with the development are constructed and maintained in accordance with the latest version of AS 2890.1:2004 *Parking facilities Off-street car parking* (Standards Australia, 2004), AS 2890.2:2018 *Parking facilities Off-street Commercial Vehicle Facilities* (Standards Australia, 2018) and AS 2890.6:2009 *Parking facilities Off-street parking for people with disabilities* (Standards Australia, 2009);
- (b) the swept path of the longest vehicle entering and exiting the site, as well as manoeuvrability through the site, is in accordance with the relevant AUSTROADS guidelines;
- (c) the development does not result in any vehicles queuing on the public road network;
- (d) heavy vehicles and bins associated with the development are not parked on local roads or footpaths in the vicinity of the site;
- (e) all vehicles are wholly contained on site before being required to stop;
- (f) all loading and unloading of materials is carried out on-site; and
- (g) the proposed turning areas in the car park are kept clear of any obstacles, including parked cars, at all times.

SOILS, WATER QUALITY AND HYDROLOGY

Imported Soil

B28. The Applicant must:

- (a) ensure that only VENM, ENM, or other fill material approved in writing by EPA is brought onto the site for use as fill;
- (b) keep accurate records of the volume and type of fill to be used; and
- (c) make these records available to the Planning Secretary upon request.

Erosion and Sediment Control

B29. Prior to the commencement of any construction or other surface disturbance for the development, the Applicant must install suitable erosion and sediment control measures on-site, in accordance with the relevant requirements of the *Managing Urban Stormwater: Soils and Construction - Volume 1: Blue Book* (Landcom, 2004) guideline and the Erosion and Sediment Control Plan included in the CEMP required by condition C2.

B30. The Applicant must maintain the erosion and sediment control measures installed on-site in accordance with condition B29 for the duration of construction of the development.

Discharge Limits

B31. The development must comply with section 120 of the POEO Act, which prohibits the pollution of waters, except as expressly provided for in an EPL or in accordance with any applicable regulations under the POEO Act.

Stormwater Management System

B32. Prior to the commencement of construction of the development's stormwater management system, the Applicant must finalise the system's detailed design. The system must:

- (a) be designed by a suitably qualified and experienced person(s);
- (b) be designed in consultation with Council;
- (c) be generally in accordance with the conceptual design in the EIS and Submissions Report;
- (d) be in accordance with applicable Australian Standards; and
- (e) ensure that the system capacity has been designed in accordance with *Australian Rainfall and Runoff* (Engineers Australia, 2016) and *Managing Urban Stormwater: Council Handbook* (EPA, 1997) guidelines;

B33. The Applicant must maintain the stormwater management system installed on the site under condition B32 for the duration of the development.

Flood Management

B34. Prior to the commencement of construction of the development, the Applicant must prepare a Flood Emergency Response Plan. The Plan must form part of the CEMP required by conditions C2 and must:

- (a) be prepared by a suitably qualified and experienced person(s);
- (b) be prepared in consultation with the NSW State Emergency Service;
- (c) address the provisions of the *Floodplain risk management manual* (DPE, 2023) and *Support for emergency management planning* (DPE, 2023); and
- (d) include details of:
 - (i) the flood emergency responses for each construction phase of the development;
 - (ii) predicted flood levels;
 - (iii) flood warning time and flood notification;
 - (iv) assembly points and evacuation routes;
 - (v) evacuation and refuge protocols; and
 - (vi) awareness training for employees and contractors.

B35. The Applicant must:

- (a) submit a copy of the Flood Emergency Response Plan required by condition B34 to the Planning Secretary prior to the commencement of construction; and
- (b) implement the most recent version of the Flood Emergency Response Plan for the duration of construction of the development.

B36. Prior to the commencement of operation of the development, the Applicant must prepare a Flood Emergency Response Plan. The Plan must form part of the OEMP required by conditions C5 and must:

- (a) be prepared by a suitably qualified and experienced person(s);
- (b) be prepared in consultation with the NSW State Emergency Service;
- (c) address the provisions of the *Floodplain risk management manual* (DPE, 2023) and *Support for emergency management planning* (DPE, 2023); and
- (d) include details of:
 - (i) the flood emergency responses for each operational phase of the development;
 - (ii) predicted flood levels;
 - (iii) flood warning time and flood notification;
 - (iv) assembly points and evacuation routes;
 - (v) evacuation and refuge protocols; and
 - (vi) awareness training for employees and contractors.

B37. The Applicant must:

- (a) submit a copy of the Flood Emergency Response Plan required by condition B36 to the Planning Secretary prior to the commencement of operation; and
- (b) implement the most recent version of the Flood Emergency Response Plan for the duration of the development.

ABORIGINAL HERITAGE

Unexpected Finds Protocol

B38. If any item or object of Aboriginal heritage significance is identified on site:

- (a) all work in the immediate vicinity of the suspected Aboriginal item or object must cease immediately;
- (b) a 10 m wide buffer area around the suspected item or object must be cordoned off; and

- (c) Heritage NSW must be contacted immediately.

B39. Work in the immediate vicinity of the Aboriginal item or object may only recommence in accordance with the provisions of Part 6 of the *National Parks and Wildlife Act 1974*.

BIODIVERSITY

B40. Prior to any clearing or construction works for the development, the Applicant must purchase and retire two (2) ecosystem credits to offset the removal of River-Flat Eucalypt on Coastal Floodplains of the NSW North Coast, Sydney Basin and South East Corner Bioregions at the site. The ecosystem credits must be retired in accordance with the requirements of the Biodiversity Offsets Scheme and the *Biodiversity Conservation Act 2016*.

B41. The requirement to retire ecosystem credits (see condition B40) may be satisfied by payment to the Biodiversity Conservation Fund of an amount equivalent to the number and classes of ecosystem credits, as calculated by the Biodiversity Offsets Payment Calculator.

B42. Prior to undertaking any clearing or construction works for the development, the Applicant must provide the Planning Secretary with evidence that:

- (a) the retirement of ecosystem credits has been completed in accordance with condition B40; or
- (b) a payment has been made to the Biodiversity Conservation Fund in accordance with condition B41.

Tree Protection Measures

B43. All trees identified for retention within the site are to be retained and protected in accordance with the latest version of Australian Standard 4970:2009 – *Protection of Trees on Development* for the duration of the development.

Biodiversity Management Plan

B44. Prior to clearing for construction of the development, the Applicant must prepare a Biodiversity Management Plan (BMP) to the satisfaction of the Planning Secretary. The Biodiversity Management Plan must be approved by the Planning Secretary prior to the commencement of clearing for construction and must form part of the CEMP in accordance with condition C2. The Plan must include the following:

- (a) Be prepared by a suitably qualified ecologist;
- (b) Identification of trees to be protected during construction;
- (c) Mitigation and management measures recommended in the BDAR prepared by Ecologique, Revision 2, dated 21 February 2025;
- (d) A program for pre-clearance fauna surveys to determine the presence of resident native fauna using nests, dreys and hollows habitat;
- (e) Measures to manage the relocation of any resident native fauna potentially impact by the removal of trees to an appropriate nearby location or replacement habitation under the supervision of a qualified ecologist or licensed wildlife handler; and
- (f) A procedure for the re-use and relocation of habitat features, including but not limited to, tree trunks, root balls and tree hollows.

B45. The Applicant must:

- (a) not commence operation until the Biodiversity Management Plan is approved by the Planning Secretary; and
- (b) implement the most recent version of the Biodiversity Management Plan approved by the Planning Secretary.

HAZARDS AND RISK

Dangerous Goods

B46. The Applicant must ensure that the quantities of dangerous goods stored and handled at the site remain below the threshold quantities listed in the Department's *Hazardous and Offensive Development Application Guidelines – Applying SEPP 33* (DoP, 2011) at all times.

B47. Dangerous goods, as defined by the Australian Dangerous Goods Code, must be stored and handled strictly in accordance with:

- (a) all relevant Australian Standards; and
- (b) for liquids:
 - (i) a minimum bund volume requirement of 110% of the volume of the largest single stored volume within the bund; and
 - (ii) the EPA's *Storing and Handling of Liquids: Environmental Protection – Participants Manual* (DCCEEW, 2007).

In the event of an inconsistency between the requirements listed in subpoints (b)(i) and (b)(ii) above, the most stringent requirement must prevail to the extent of the inconsistency.

Fire Safety Study

- B48. At least one month prior to the commencement of construction of the development (except for construction of those preliminary works that are outside the scope of the hazard studies), or within such further period as the Planning Secretary may agree, the Applicant must prepare and submit, for the approval of the Planning Secretary, a Fire Safety Study (FSS) for the development. The FSS must:
- (a) meet the operational requirements of FRNSW;
 - (b) address the relevant aspects of:
 - (i) *Hazardous Industry Planning Advisory Paper No. 2, 'Fire safety study guidelines'* (DoP, 2011); and
 - (ii) *Best practice guidelines for contaminated water retention and treatment systems* (NSW HMPCC, 1994);
 - (c) consider the operational capability of local fire agencies and the need for the development to achieve an adequate level of on-site fire and life safety independence;
 - (d) verify the final design of the development's fire safety systems complies with:
 - (i) *AS/NZS 4681:2000 The storage and handling of Class 9 (miscellaneous) dangerous goods and articles* (Standards Australia, 2000);
 - (ii) *IEC 62619:2022 Secondary cells and batteries containing alkaline or other non-acid electrolytes – Safety requirements for secondary lithium cells and batteries, for use in industrial applications* (IEC, 2022); and
 - (iii) *AS 1940:2017 The storage and handling of flammable and combustible liquids* (Standards Australia, 2017);
 - (e) consult with FRNSW and report on the outcome of consultation with FRNSW regarding the fire safety system's compliance with *Loss Prevention Data Sheet 5-32 – Data centres and related facilities* (FM Global Property, 2022); and
 - (f) include FRNSW's correspondence stating that the FSS has been prepared to their satisfaction.
- In the event of an inconsistency between the requirements listed in subpoints (d)(i) to (d)(iii) above, the requirements as agreed to with FRNSW shall prevail to the extent of the inconsistency.
- B49. The Applicant must not commence construction of the development (except for construction of preliminary works that are outside the scope of the fire-related reports or studies) and unless otherwise agreed by the Planning Secretary, until the FSS required by condition B48 has been approved by FRNSW and the Planning Secretary.

Emergency Plan

- B50. No later than two months prior to the commencement of operation of the development, or within such further period as the Planning Secretary may agree, the Applicant must submit a comprehensive Emergency Plan and detailed emergency procedures for the development to the satisfaction of the Planning Secretary. The Emergency Plan must:
- (a) include consideration of the safety of all people outside of the development who may be at risk from the development; and
 - (b) be prepared in accordance with the Department's *Hazardous Industry Planning Advisory Paper No. 1, 'Emergency Planning'* (DoP, 2011);
 - (c) include an Emergency Services Information Package in accordance with FRNSW's *Fire Safety Guideline – Emergency Services Information Package and Tactical Fire Plans* (FRNSW, 2019), to the satisfaction of FRNSW.
- B51. The Applicant must:
- (a) implement the most recent version of the Emergency Plan and the Emergency Services Information Package (see condition B50) for the duration of the development; and
 - (b) keep a copy of the Emergency Services Information Package on-site in a prominent position adjacent to the site entry points at all times.

WASTE MANAGEMENT

Construction Waste Management

- B52. Prior to the commencement of construction of the development, the Applicant must prepare a Construction Waste Management Plan for the development and submit to the Planning Secretary. The Plan must form part of a CEMP in accordance with condition C2 and must:
- (a) detail the quantities of each waste type generated during construction and the proposed reuse, recycling and disposal locations; and
 - (b) be implemented for the duration of construction works.
- B53. The Applicant must:

- (a) not commence construction until the Construction Waste Management Plan is submitted to the Planning Secretary.
- (b) implement the most recent version of the Construction Waste Management Plan is submitted to the Planning Secretary.

Waste Management

- B54. Waste generated by the development must be secured and maintained within designated on-site waste storage areas until it is removed from the site.
- B55. The Applicant must assess and classify all liquid and non-liquid wastes to be removed from the site in accordance with the latest version of the EPA's *Waste Classification Guidelines Part 1: Classifying Waste* (EPA, 2014).
- B56. The Applicant must ensure:
- (a) all e-waste materials removed from the site are directed to a reuse or recycling facility lawfully permitted to accept the materials (or as otherwise agreed to by the Planning Secretary); and
 - (b) all other waste materials removed from the site are directed to a waste management facility or premises lawfully permitted to accept the materials.
- B57. Waste generated outside the site must not be received at the site for storage, treatment, processing, reprocessing, or disposal.

Pests, Vermin and Priority Weed Management

- B58. The Applicant must:
- (a) implement suitable measures to manage pests, vermin and declared priority weeds on the site; and
 - (b) inspect the site on a regular basis to ensure that these measures are working effectively, and that pests, vermin or priority weeds are not present on site in sufficient numbers to pose an environmental hazard or cause the loss of amenity in the surrounding area.

Note: For the purposes of this condition, priority weed has the same definition of the term in the Biosecurity Act 2015.

VISUAL AMENITY

Landscaping

- B59. Prior to the commencement of operation of the development, the Applicant must prepare a Landscape Management Plan to manage the development's landscaping works, to the satisfaction of the Planning Secretary. The plan must form part of an OEMP in accordance with condition C5. The plan must:
- (a) detail the species to be planted on-site;
 - (b) be consistent with the planting schedule, species, pot size, number of plants as described in the Landscape Report, prepared by Arcadia Sydney, Revisions B, dated July 2025 and Landscape Plans prepared by Arcadia Sydney, Issue B, dated 04 July 2025;
 - (c) describe the monitoring and maintenance measures to manage revegetation and landscaping works; and
 - (d) be consistent with the Applicant's Management and Mitigation Measures included in Appendix 2.
- B60. The Applicant must:
- (a) not commence operation until the Landscape Management Plan is approved by the Planning Secretary;
 - (b) implement the most recent version of the Landscape Management Plan approved by the Planning Secretary; and
 - (c) maintain the landscaping and vegetation on the site in accordance with the approved Landscape Management Plan required by condition B59 for the life of the development.

Lighting

- B61. The Applicant must ensure the lighting associated with the development:
- (a) complies with the latest version of AS 4282-2019 - *Control of the obtrusive effects of outdoor lighting* (Standards Australia, 2019); and
 - (b) is mounted, screened and directed in such a manner that it does not create a nuisance to surrounding properties or the public road network.

Signage and Fencing

- B62. All signage and fencing must be erected in accordance with the development plans included in the Submissions Report.

Note: This condition does not apply to temporary construction and safety related signage and fencing.

PART C ENVIRONMENTAL MANAGEMENT, REPORTING AND AUDITING

ENVIRONMENTAL MANAGEMENT

Management Plan Requirements

- C1. Management plans required under this consent must be prepared in accordance with relevant guidelines, and include:
- (a) a condition compliance table for that plan;
 - (b) detailed baseline data (where required);
 - (c) details of:
 - (i) the relevant statutory requirements (including any relevant approval, licence or lease conditions);
 - (ii) any relevant limits or performance measures and criteria; and
 - (iii) the specific performance indicators that are proposed to be used to judge the performance of, or guide the implementation of, the development or any management measures;
 - (d) a description of the measures to be implemented to comply with the relevant statutory requirements, limits, or performance measures and criteria;
 - (e) a program to monitor and report on the:
 - (i) impacts and environmental performance of the development;
 - (ii) trends in the monitoring data over the life of the development; and
 - (iii) effectiveness of the management measures set out pursuant to paragraph (d) above;
 - (f) a contingency plan to manage any unpredicted impacts and their consequences and to ensure that ongoing impacts reduce to levels below relevant impact assessment criteria and/or limits as quickly as possible;
 - (g) a program to investigate and implement ways to improve the environmental performance of the development over time;
 - (h) a protocol for managing and reporting any:
 - (i) incident and any non-compliance (specifically including any exceedance of the impact assessment criteria and performance criteria);
 - (ii) complaint;
 - (iii) failure to comply with statutory requirements; and
 - (i) a protocol for periodic review of the plan.

Note: *The Planning Secretary may waive some of these requirements if they are unnecessary or unwarranted for particular management plans*

CONSTRUCTION ENVIRONMENTAL MANAGEMENT PLAN

- C2. The Applicant must prepare a Construction Environmental Management Plan (CEMP) for the development in accordance with the requirements of condition C1 and to the satisfaction of the Planning Secretary.
- C3. As part of the CEMP required under condition C2 of this consent, the Applicant must include the following:
- (a) details of the community consultation and complaints handling procedure to be implemented during construction;
 - (b) Construction Noise Management Plan (see condition B5);
 - (c) Construction Traffic Management Plan (see condition B23);
 - (d) erosion and sediment control plan(s) (see condition B29);
 - (e) a copy of the Flood Emergency Management Plan (see condition B34); and
 - (f) Biodiversity Management Plan (see condition B44); and
 - (g) Construction Waste Management Plan (see condition B52).
- C4. The Applicant must:
- (a) not commence construction of the development until the CEMP required by condition C2 is approved by the Planning Secretary; and
 - (b) carry out construction of the development in accordance with the CEMP approved by the Planning Secretary (and as revised and approved by the Planning Secretary from time to time).

OPERATIONAL ENVIRONMENTAL MANAGEMENT PLAN

- C5. The Applicant must prepare an Operational Environmental Management Plan (OEMP) for the development in accordance with the requirements of condition C1 and to the satisfaction of the Planning Secretary.
- C6. As part of the OEMP required under condition C5 of this consent, the Applicant must include the following:

- (a) a description of the role, responsibility, authority and accountability of all key personnel involved in the environmental management of the development;
- (b) a description of the procedures that would be implemented to:
 - (i) keep the local community and relevant agencies informed about the operation and environmental performance of the development;
 - (ii) receive, handle, respond to, and record complaints;
 - (iii) resolve any disputes that may arise;
 - (iv) respond to any non-compliance;
 - (v) respond to emergencies; and
- (c) Air Quality Management Plan (see condition B16);
- (d) Sustainability Management Plan (see condition B21);
- (e) a copy of the Flood Emergency Management Plan (see condition B36); and
- (f) Landscape Management Plan (see condition B59).

C7. The Applicant must:

- (a) not commence operation until the OEMP required by condition C5 is approved by the Planning Secretary; and
- (b) operate the development in accordance with the OEMP approved by the Planning Secretary (and as revised and approved by the Planning Secretary from time to time).

REVISION OF STRATEGIES, PLANS AND PROGRAMS

- C8. Prior to the commencement of construction of any works associated with any modification to this consent, or within three months of:
- (a) the submission of an incident report under condition C10;
 - (b) the submission of a Compliance Report under condition C14;
 - (c) the Annual Environmental Management Report under condition C18;
 - (d) the submission of a Back-up Generator Notification Report under condition C19;
 - (e) the approval of any modification of the conditions of this consent; or
 - (f) the issue of a direction of the Planning Secretary under condition A2(b) which requires a review,
- the strategies, plans and programs required under this consent must be reviewed, and the Planning Secretary must be notified in writing of the outcomes of any review.
- C9. If identified as part of the review process (see condition C8) or considered necessary to improve the environmental performance of the development, the Applicant must ensure the strategies, plans and programs required under this consent are revised, to the satisfaction of the Planning Secretary.

The revised document(s) must be submitted to the Planning Secretary for approval within six weeks of the review process taking place, or in the case of a modification approving the construction of any works, prior to the commencement of construction of those works, or such other timing as agreed by the Planning Secretary.

Note: *This is to ensure strategies, plans and programs are updated on a regular basis and to incorporate any recommended measures to improve the environmental performance of the development.*

REPORTING AND AUDITING

Incident Notification, Reporting and Response

- C10. The Applicant must notify the Department within 24 hours of becoming aware of an incident. The notification must be made via the NSW planning portal (Major Projects) and address details of the incident, including:
- (a) the date, time and location;
 - (b) a brief description of what occurred and why it has been classified as an incident;
 - (c) a description of what immediate steps were taken in relation to the incident; and
 - (d) identifying a contact person for further communication regarding the incident.
- C11. The Applicant must provide the Department with a subsequent incident report in accordance with the requirements set out in Appendix 3 of this consent.

Non-Compliance Notification

- C12. Within seven days of becoming aware of any non-compliance, the Applicant must notify the Department of the non-compliance, in writing, via the NSW planning portal (Major Projects).

- C13. A non-compliance notification submitted under condition C12 must identify the development (including the development application number and name), set out the condition of this consent that the development is non-compliant with, why it does not comply, the reasons for the non-compliance (if known), and what actions have been undertaken, or will be undertaken, and when, to address the non-compliance.

Note: A non-compliance which has been notified as an incident does not need to also be notified as a non-compliance.

Compliance Reporting

- C14. Within one year after the commencement of operation of the development, and in the same month each subsequent year (or such other timing as agreed by the Planning Secretary), the Applicant must submit a Compliance Report to the Department. Compliance Reports must be prepared in accordance with the Department's Compliance Reporting Post Approval Requirements in force at the time the compliance review commences, as approved by the Planning Secretary and published on the Department's website.
- C15. The Applicant must make each Compliance Report publicly available no later than 60 days after submitting it to the Planning Secretary and notify the Planning Secretary in writing at least seven days before this is done.

Independent Audit

- C16. Within six months after the commencement of operation of the development, and every three years after, unless the Planning Secretary directs otherwise, the Applicant must commission and pay the full cost of an Independent Environmental Audit (Audit) of the development. Audits must be conducted and carried out in accordance with the Independent Audit Post Approval Requirements in force at the time the Audit commences, as approved by the Planning Secretary and published on the Department's website.
- C17. The Applicant must make each Independent Audit Report and response to it publicly available no later than 60 days after submission to the Planning Secretary and notify the Planning Secretary in writing at least seven days before this is done.

Annual Report

- C18. Within fifteen (15) months of the commencement of operation, and annually thereafter (or as otherwise agreed by the Planning Secretary), the Applicant must prepare and submit an Annual Environmental Management Report (AEMR) for the development to the Planning Secretary. This report must:
- (a) identify the standards and performance measures that apply to the development;
 - (b) include:
 - (i) a summary of any complaints received during the reporting period, and a comparison of any trends in complaints received in previous years;
 - (ii) an operations log for the back-up generators, detailing the date, time, duration and purpose of each use;
 - (iii) a diesel fuel storage log, documenting the quantity of diesel fuel stored on site at any one time in litres and tonnes, with daily recorded values, expressed in litres and tonnes, for the reporting period;
 - (iv) details regarding the:
 - total number of hours the back-up generators were operated for;
 - total quantity of diesel fuel used by the back-up generators;
 - (c) summarise and analyse the monitoring results for the development, including the annual emissions testing (see condition B14) during the reporting period;
 - (d) identify any trends in the monitoring results over the life of the development;
 - (e) identify any non-compliance during the reporting period, including in relation to conditions A7, B7, B9 and B13; and
 - (f) describe what environmental management targets and strategies were, or will be implemented for the following reporting period, taking into account the identified environmental performance of the development, to ensure compliance.

Back-up Generator Notification Report

- C19. Within 30 days of the back-up generators being used to power any part of the development during a power outage event (or as otherwise agreed to by the Planning Secretary), the Applicant must prepare and submit a Back-up Generator Notification Report for the development to the satisfaction of the Planning Secretary. The report must include:
- (a) details regarding the:
 - (i) date and time of the power outage event;
 - (ii) date and time of back-up generator operation;
 - (iii) identification of the back-up generators used and the total number of generators operated;

- (iv) duration of operation for each generator and the total duration of generator use;
- (v) total quantity of diesel fuel used by the back-up generators;
- (vi) total amount of electricity produced by the back-up generators;
- (b) if relevant, confirmation regarding whether neighbouring properties were made aware that the development's back-up generator system was operating (see condition B16(f));
- (c) an assessment of any air quality impacts resulting from the operation of the back-up generators; and
- (d) assessment and recommendation of additional measures that could be implemented to reduce future impacts, including but not limited to reduced likelihood of generator operation and retrofit of generator emission controls.

Monitoring and Environmental Audits

C20. Any condition of this consent that requires the carrying out of monitoring or an environmental audit, whether directly or by way of a plan, strategy or program, is taken to be a condition requiring monitoring or an environmental audit under Division 9.4 of Part 9 of the EP&A Act. This includes conditions in respect of incident notification, reporting and response, non-compliance notification, compliance reporting and independent auditing.

Note: *For the purposes of this condition, as set out in the EP&A Act, "monitoring" is monitoring of the development to provide data on compliance with the consent or on the environmental impact of the development, and an "environmental audit" is a periodic or particular documented evaluation of the development to provide information on compliance with the consent or the environmental management or impact of the development.*

ACCESS TO INFORMATION

C21. At least 48 hours before the commencement of construction of the development and for the life of the development (or such other time as agreed by the Planning Secretary), the Applicant must:

- (a) make the following information and documents (as they are obtained or approved) publicly available on its website:
 - (i) the documents referred to in condition A2 of this consent;
 - (ii) all current statutory approvals for the development;
 - (iii) all approved strategies, plans and programs required under the conditions of this consent with the exception of any hazard and risk related studies;
 - (iv) regular reporting on the environmental performance of the development in accordance with the reporting requirements in any plans or programs approved under the conditions of this consent;
 - (v) a comprehensive summary of the monitoring results of the development, reported in accordance with the specifications in any conditions of this consent, or any approved plans and programs;
 - (vi) a summary of the current stage and progress of the development;
 - (vii) contact details to enquire about the development or to make a complaint;
 - (viii) a complaints register, updated quarterly;
 - (ix) copies of the following reports:
 - the Compliance Report (see condition C14);
 - audit reports prepared as part of any Independent Audit of the development and the Applicant's response to the recommendations in any audit report (see condition C16);
 - the Annual Environmental Management Report (see condition C18); and
 - the Back-up Generator Notification Report (see condition C19);
 - (x) any other matter required by the Planning Secretary; and
- (b) keep such information up to date, to the satisfaction of the Planning Secretary.

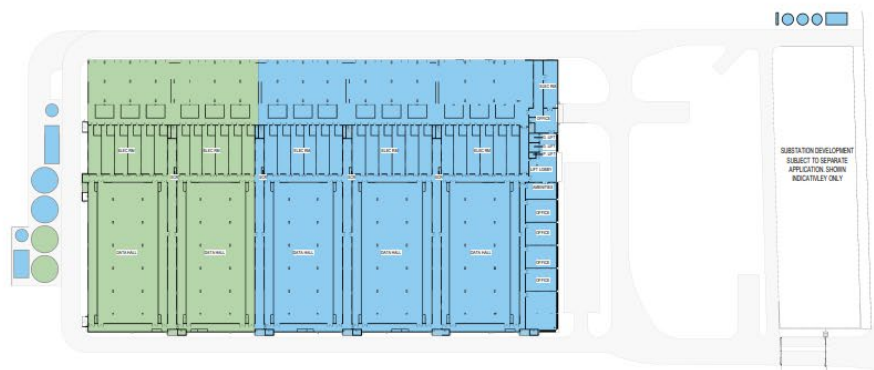
APPENDIX 1 DEVELOPMENT LAYOUT PLANS



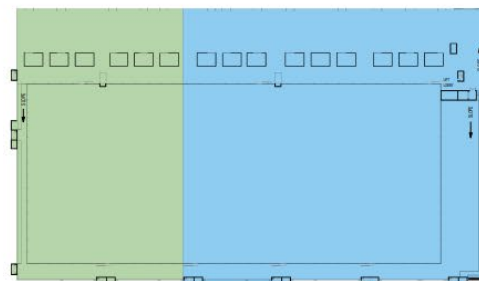
Figure 1: Site Plan(s)



SITE STAGING - GROUND FLOOR



STAGING PLAN - LEVEL 1



SITE STAGING - ROOF LEVEL

STAGING LEGEND

- STAGE 1
- STAGE 2

Figure 2: Staging Plan(s)

Jo No.	Drawing Number	Drawing Title	Drawing Issue	Date
Architectural Drawings prepared by Greenbox Architecture Pty Ltd				
240028	0000007	Development Summary	B	23/04/2025
240028	0000010	Site Plan	A3	23/04/2025
240028	0000014	Indicative Staging Plan	B	23/04/2025
240028	0000015	Security Plan	B	23/04/2025
240028	0000016	Signage Layout Plan	B	23/04/2025
240028	0000020	Overall Ground Floor Plan	B	23/04/2025
240028	0000021	Overall Level 1 Floor Plan	B	23/04/2025
240028	0000022	Overall Roof Gantry Level	A4	23/04/2025
240028	0000023	Overall Roof Platform Level	A4	23/04/2025
240028	0000024	Overall Roof Maintenance Level	A4	23/04/2025
240028	0000201	Building Sections	B	23/04/2025
240028	0000250	Site Elevations	B	23/04/2025
240028	0000251	Site Elevations – Phase 1 only	B	23/04/2025
240028	0000252	Building Elevations	B	23/04/2025
Landscape Plans prepared by Arcadia				
24-1027	L-100	Landscape Masterplan	B	04/07/2025
24-1027	L-400	Planting Schedule	B	04/07/2025
24-1027	L-401	Softworks Plan	B	04/07/2025
24-1027	L-402	Softworks Plan	B	04/07/2025
24-1027	L-403	Softworks Plan	B	04/07/2025
24-1027	L-404	Softworks Plan	B	04/07/2025
24-1027	L-405	Softworks Plan	B	04/07/2025
24-1027	L-406	Softworks Plan	B	04/07/2025
24-1027	L-407	Softworks Plan	B	04/07/2025
24-1027	L-408	Softworks Plan	B	04/07/2025
24-1027	L-409	Softworks Plan	B	04/07/2025
24-1027	L-410	Softworks Plan	B	04/07/2025
24-1027	L-600	Landscape Details	B	04/07/2025
24-1027	L-700	Landscape Specification	B	04/07/2025
Civil Infrastructure Drawings prepared by Van Der Meer				
SY242-012	SSDA-C100	General Arrangement Plan	C	03/07/2025
SY242-012	SSDA-C101	Site Plan – Stage 1	C	03/07/2025
SY242-012	SSDA-C102	Site Plan – Stage 2	C	03/07/2025
SY242-012	SSDA-C111	Typical Sections – Sheet 1	B	15/04/2025
SY242-012	SSDA-C112	Typical Sections – Sheet 2	B	15/04/2025
SY242-012	SSDA-C121	Erosion & Sediment Control Plan	B	15/04/2025
SY242-012	SSDA-C151	Erosion & Sediment Control Details	B	15/04/2025
SY242-012	SSDA-C200	Cut and fill plan	B	15/04/2025
SY242-012	SSDA-C211	Bulk earthworks sections – sheet 1	B	15/04/2025
SY242-012	SSDA-C212	Bulk earthworks sections – sheet 2	B	15/04/2025
SY242-012	SSDA-C401	Drainage Plan – Sheet 1	C	03/07/2025
SY242-012	SSDA-C402	Drainage Plan – Sheet 2	C	03/07/2025

SY242-012	SSDA-C403	Drainage Plan – Sheet 3	C	03/07/2025
SY242-012	SSDA-C404	Drainage Plan –Sheet 4	C	03/07/2025
SY242-012	SSDA-C405	Drainage Plan – Sheet 5	C	03/07/2025
SY242-012	SSDA-C406	Drainage Plan – Sheet 6	C	03/07/2025
SY242-012	SSDA-C411	Drainage Long Sections Sheet 1	C	03/07/2025
SY242-012	SSDA-C421	DRAINS Catchment Plan	C	03/07/2025
SY242-012	SSDA-C422	MUSIC Catchment Plan	C	03/07/2025
SY242-012	SSDA-C451	Drainage Details – Sheet 1	C	03/07/2025
SY242-012	SSDA-C452	Drainage Details – Sheet 2	C	03/07/2025
SY242-012	SSDA-C453	Drainage Details – Sheet 3	C	03/07/2025
SY242-012	SSDA-C501	McCredie Road Frontage Plan	B	15/04/2025
SY242-012	SSDA-C521	McCredie Road Driveway 1 Plan & Long Sections	B	15/04/2025
SY242-012	SSDA-C522	McCredie Road Driveway 2 Plan & Long Sections	B	15/04/2025
SY242-012	SSDA-551	External Works Details – Sheet 1	B	15/04/2025

APPENDIX 2 APPLICANT'S MANAGEMENT AND MITIGATION MEASURES

TBC

APPENDIX 3 INCIDENT NOTIFICATION AND REPORTING REQUIREMENTS

WRITTEN INCIDENT NOTIFICATION REQUIREMENTS

1. All incident notifications and reports must be submitted via the NSW planning portal (Major Projects).
2. The Applicant must provide notification as required under these requirements, even if the Applicant fails to give the notification required under condition C10 or, having given such notification, subsequently forms the view that an incident has not occurred.
3. Within **7 days** (or as otherwise agreed by the Planning Secretary) of the Applicant making the immediate incident notification (in accordance with condition C10), the Applicant is required to submit a subsequent incident report that:
 - (a) identifies how the incident was detected;
 - (b) identifies when the Applicant became aware of the incident;
 - (c) identifies any actual or potential non-compliance with conditions of consent;
 - (d) identifies further action(s) that will be taken in relation to the incident;
 - (e) a summary of the incident;
 - (f) outcomes of an incident investigation, including identification of the cause of the incident;
 - (g) details of the corrective and preventative actions that have been, or will be, implemented to address the incident and prevent recurrence, including the period for implementing any corrective and/or preventative actions; and
 - (h) details of any communication with other stakeholders regarding the incident.
4. The Applicant must submit any further reports as directed by the Planning Secretary.

INCIDENT REPORT REQUIREMENTS

5. If requested by the Planning Secretary, within 30 days of the date on which the incident occurred or as otherwise agreed to by the Planning Secretary, the Applicant must provide the Planning Secretary and any relevant public authorities (as determined by the Planning Secretary) with a detailed report on the incident addressing all requirements below, and such further reports as may be requested.
6. The Incident Report must include:
 - (a) a summary of the incident;
 - (b) outcomes of an incident investigation, including identification of the cause of the incident;
 - (c) details of the corrective and preventative actions that have been, or will be, implemented to address the incident and prevent recurrence; and
 - (d) details of any communication with other stakeholders regarding the incident.